

#	Case Name	Tentative
50	<i>Off calendar.</i>	
51	<i>Gulley vs. James Rivers Insurance Company</i>	Plaintiff Calvin Gulley’s Motion for Leave To File First Amended Complaint is GRANTED. Under Code of Civil Procedure section 473, subdivision (a)(1), “[t]he court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” While this discretion will generally be exercised liberally to permit amendment of the pleadings, the court acts within its discretion to deny an amendment where there has been a long delay in seeking the amendment and allowing the amendment would be prejudicial to the opposing side. (See <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 488.) Under California Rules of Court, rule 3.1324, a motion to amend shall include a copy of the proposed amendment or amended pleading, identify by page, paragraph, and line number any additions to and deletions from the prior pleading. (Cal. Rules of Court, rule 3.1324(a).) Additionally, the motion shall be accompanied by a supporting declaration that specifies: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and